considered far more prestigious at the time.[4] Aside from being a junior in the chambers of Muhammad Ali Jinnah, Chagla was the first Indian chief justice of the Bombay High Court and an ad hoc judge at the International Court of Justice. His judicial career was followed by a distinguished diplomatic career as ambassador to the United States and high commissioner to Britain. Gajendragadkar, who turned fifty in the months before the Narasu case was decided, would be elevated to the Supreme Court five years later and ultimately serve as chief justice of India. C.K. Daphtary, who was solicitor general of India at the time and would later become attorney general, represented the state of Bombay.

The law was challenged on two grounds. First, it was argued that the law violated the right to profess, practise and propagate religion under Article 25 of the Constitution. The court found it relatively easy to reject this argument. Article 25 also permitted the state to provide for 'social welfare and reform'. As Chief Justice Chagla noted, large sections of society considered monogamy 'a very desirable and praiseworthy institution'[5] – a move towards monogamy would therefore constitute social reform. The legislature of the state of Bombay was free to prohibit bigamy in recognition of this. The court was reluctant to displace the view of the legislature on what would, and would not, constitute appropriate social reform.

The other ground on which the law was challenged presented the high court with greater difficulty. The other 'CK' in the case – C.K. Shah, the advocate for the respondents – argued that the law violated the right to equality by applying only to some communities (Hindus, Sikhs, Buddhists, Jains, and followers of the Brahmo Samaj and Arya Samaj) and not others, such as Muslims, Parsis and Christians. Bigamy was, in any event, a criminal offence for Parsis and Christians (but not for Hindus and Muslims) under the IPC.[6] (Bigamy among Hindus was prohibited and became an offence *across* India only with the enactment of the Hindu Marriage Act of 1955.) However, the Bombay bigamy law (which applied only to Hindus) was harsher than the IPC. The offence under the IPC could only be prosecuted upon the complaint of the wife – a requirement that was not imposed by the Bombay law. The Bombay law, unlike the IPC, also did not permit a